

21STCV45150 21STCV45150

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-20

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Case Number: 21STCV45150 Hearing Date: July 20, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 20, 2026

Case Name: Dardashti v. Shadpour, et al.

Case No.: 21STCV45150

Matter: Motion to Continue Trial Date

Moving Party: Defendant Rebeka Shadpour

Responding Party: Plaintiff Shawn Dardashti

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an action in which Plaintiff alleges that during a real property purchase her agent, Defendant Rebeka Shadpour, misappropriated Plaintiff's funds to enrich herself.

The trial date in this action is August 3, 2026.

Defendant Rebeka Shadpour has scheduled a summary judgment motion ("MSJ") for September 10, 2026.

Defendant Shadpour now seeks to continue the trial date and all related dates to 30 days after her MSJ such that her MSJ can be heard.

Cal. Rules of Court, Rule 3.1332 provides, "In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include: (1) The proximity of the trial date; (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party; (3) The length of the continuance requested; (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; (5) The prejudice that parties or witnesses will suffer as a result of the continuance; (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; (7) The court's calendar and the impact of granting a continuance on other pending trials; (8) Whether trial counsel is engaged in another trial; (9) Whether all parties have stipulated to a continuance; (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and (11) Any other fact or circumstance relevant to the fair determination of the motion or application."

This action was filed in December 2021, and Defendant filed her Answer in February 2022. Defendant had 4.5 years to file her MSJ and has not justified a continuance of the trial date at the eleventh hour.

The Motion is denied.

Moving party to give notice.